

Reference clauses for drafting static terms of the transaction level contract

Version History

Version	Date	Description / Changes
0.1	30-08-24	First Draft
0.2	25-09-23	Second Draft (released to NPs for feedback)
0.3	03-11-23	Third Draft (incorporating comments from NPs)
1.0	26-02-24	Final Document
2.0	25-02-25	Final Updated Document
2.1	17-09-25	Revised Final Document
2.2	08-12-25	Reviewed Final Document
2.3	30-01-26	Modification in cancellation table
2.4	13-03-26	Insertion of commission
2.5	15-05-26	Modification in Penalty and Insertion of Data Fiduciary Annexure

PURPOSE OF THIS DOCUMENT

This document is going to allow Network Participants (NPs) to add some of their own standard contractual terms to the digital Transaction Level Contract. These standard terms (hereafter referred to as “static terms”) will be inserted into the digital contract as a URL which will be mapped to the “static terms” attribute in the API Specification. These are boilerplate contractual terms which do not change from one transaction to another (hence the name static terms) – including clauses related indemnity, obligations of Parties, liability, force majeure etc. The static terms hosted on the URL specified by the NP, along with the payload of the APIs will form the contract between the Buyer App and Seller App for a given transaction.

Business Partnership Agreement

This Business Partnership Agreement (Agreement) is entered into between

Bajaj Finserv Direct Limited, a company incorporated under the Companies Act, 1956 having its registered office at Bajaj Auto Limited Complex, Mumbai Pune Road, Akurdi, Pune – 411035, Maharashtra and Corporate Office at Cerebrum IT Park, B2 Building, 4th Floor, Kumar City, Kalyani Nagar, Pune 411014, Maharashtra (referred to as BFDL/Buyer App), and Seller Network Participant that is part of the ONDC Network (Seller App).

Seller App has agreed to avail Buyer App's services for the purpose of facilitating Order placed by the Buyer. Buyer App and Seller App are hereinafter collectively referred to as the Parties and individually as the Party.

WHEREAS

- A. Buyer App has onboarded the ONDC Network as a Buyer Side Application and enables Buyers to purchase any Products using its digital platform.
- B. Seller App have onboarded the ONDC Network as a Seller Side Application and are desirous of availing following services from the Buyer App.
 - i. Identify potential buyers on the basis of the criteria provided by Seller App
 - ii. Facilitate Buyers to purchase Seller's goods or services
- C. The terms and conditions provided hereinafter including the terms and conditions exchanged between the Parties through the ONDC Protocol (Confirmation) will govern the relationship between the Parties.

1. DEFINITIONS:

All terms used herein, unless the context otherwise requires or unless specifically defined herein, shall have the meanings ascribed to them in the ONDC Network Policy or ONDC Network Participant Agreement, as the case may be.

- 1.1. Business Day: Business Day shall mean a day other than Saturday, Sunday or public holidays as declared by the Government of India or State Government or any other Competent Authority.
- 1.2. Confirmation: as defined in the preamble of the Agreement
- 1.3. Delivery - Delivery means (a) collection of the Shipments by the Party procuring logistics from the location(s) agreed between the Parties; and (b) the delivery of such Shipments to the Buyer at the location designated by the Buyer.
- 1.4. Buyer: shall mean the any user of the Buyer App who purchases any Product from the Seller under the Seller App.
- 1.5. Order: Order shall mean all purchases made by the Buyer on the ONDC Network through the Buyer App, Seller App and Seller, Gateway and Logistics Service Provider, as applicable.

- 1.6. Product(s): shall mean the Product(s) and/or Service(s) made available by the Seller App, or any related deal/gift card/gift voucher/electronic code.
- 1.7. Seller: shall mean dealers/manufacturers/merchants who are registered on the Seller App in course of its business, imports, sells, distributes, leases, Products for commercial purpose and desires to display and advertise for sale of Products on the ONDC Network.
- 1.8. Settlement Window: shall mean the specified number of Business Days from the date of collection, Shipment or delivery or end of the Return Window, as provided in the Confirmation, within which the Network Participants will settle the amounts owed to each other.
- 1.9. Shipments: Products consolidated and packaged together and handed over to the Party procuring logistics or a Logistics Service Provider engaged by such Party.
- 1.10. ETA: Estimated time of Arrival as communicated by the seller App to Buyer App in configurable terms of TLC.
- 1.11. Hyperlocal: Delivery within city/town limits
- 1.12. Intercity: Delivery beyond city/town limits
- 1.13. OFD: Order for Food Delivery Products (E.g. Food & Beverage Items which are prepared on Order). Seller App is responsible to communicate to the Buyer App if the item is non-cancellable. In the event such items are marked as cancellable then this attribute in the transaction level contract will prevail over the static terms mentioned below.
- 1.14. Non-OFD: Order other than OFD or Made to Order (E.g. Fashion, Electronics, Beauty Products etc. - Products which are manufactured / Produced without awaiting Order from the Buyer.
- 1.15. Made to Order (MTO): Order that is not OFD but for a Product that is nevertheless prepared / procured after Order by the Buyer (made to order sarees, customised prints per Order etc.). Seller App is responsible to communicate to the Buyer if the item is non-cancellable. In the event such items are marked as cancellable then this attribute in the transaction level contract will prevail over the static terms mentioned below.
- 1.16. Quality Issues: Including but not limited to quantity mismatch or products that are expired, damaged, defective, spoiled, or packaging issues or wrong items, missing items etc.
- 1.17. RTO: Return of Goods to Original Pickup Address (If Post Shipment, an Order is not delivered to the customer due to any reason, then it is marked as RTO and usually returned to the seller's address).
- 1.18. Same Day Delivery (SDD) order: Any Order placed by the Buyer-on-Buyer App which has the same day delivery option made available by the Seller App/s.
- 1.19. Buyer Cancellation: Buyer Cancellation or Buyer Cancellation Requests include refusal by Buyer to accept delivery.

2. CANCELLATION (PRE-SHIPMENT):

Order Type	Cases	Case Description	Delivery Type	Resolution Remarks
OFD/Made to Order	Case 1 ETA Breach	Buyer requests cancellation - when the Order is not even shipped within ETA	Hyperlocal Or Intercity	BFDL will not be liable to pay any amount to Seller App on cancellation of such Orders.
	Case 2 No ETA Breach	Buyer requests cancellation - when there is no ETA breach.		BFDL will not be liable to pay any amount to Seller App on cancellation of such Orders.
Non-OFD	Case 1 ETA Breach	Buyer requests cancellation - when Order is not even shipped within ETA (Irrespective of item being cancellable or non- cancellable)		BFDL will not be liable to pay any amount to Seller App on cancellation of such Orders.
	Case 2 No ETA Breach	Buyer requests cancellation - wherein there is no ETA breach. (Irrespective of item being cancellable or non- cancellable)		BFDL will not be liable to pay any amount to Seller App as Seller App is expected to accept cancellation & not proceed with the Order

3. CANCELLATION (POST-SHIPMENT*):

* Buyer / Buyer App may initiate Post Shipment cancellation by way of the following

- i. Non receipt / acceptance by the Buyer of the Product on attempted delivery. OR
- ii. Issue over IGM for refund due to delay in delivery or any other head and acceptance by the Seller / Seller App of refund, while delivery is pending.

Post Shipment cancellation requests over Cancel API or any API other than IGM shall not be valid, if nack'd or rejected by the Seller / Seller App.

Order Type	Cases	Case Description	Delivery Type	Resolution Remarks
OFD/Made to Order	1a. OFD ETA Breach	Buyer requests cancellation - when Order has been shipped but not delivered within ETA + 30 Minutes or 150% of ETA whichever is lesser	Hyperlocal & Intercity	BFDL will not be liable to pay any amount to Seller App on cancellation of such Orders.
	1b. Made to Order ETA Breach	Buyer requests cancellation - when Order has been shipped but not delivered within ETA + 48 Hours / 2 Days		BFDL will not be liable to pay any amount to Seller App on cancellation of such Orders.
	Case 2 No ETA Breach	Buyer requests cancellation - when Order has been shipped and is yet to be delivered within ETA OR ETA + 10 Minutes for OFD / ETA. + 48 Hours / Days for Made to Order		BFDL will not be liable to pay any amount to Seller App on cancellation of such Orders.
Non - OFD (Returnable Product)	Case 1 - ETA Breach	Buyer requests cancellation - when Order has been shipped but not delivered within ETA or ETA + 2 days whichever is lesser	Hyperlocal & Intercity	BFDL will not be liable to pay any amount to Seller App on cancellation of such Orders.
	Case 2 - No ETA	Buyer requests cancellation - wherein Order has been shipped and is yet to be delivered within		BFDL will not be liable to pay any amount to Seller App for cancellation of such Orders - as Product is returnable.

	Breach	defined ETA		
Non - OFD (Non - Returnable Product)	Case 1 - ETA Breach	Buyer requests cancellation - when Order has been shipped but not delivered within ETA or ETA + 2 days whichever is lesser	Hyperlocal & Intercity	BFDL will not be liable to pay any amount to Seller App for cancellation of such Orders.
	Case 2 - No ETA Breach	Buyer requests cancellation - when Order has been shipped and is yet to be delivered within defined ETA		BFDL will not be liable to pay any amount to Seller App for cancellation of such Orders.

4. REFUND/RETURN/REPLACEMENT (POST DELIVERY)

Order Type	Cases	Case Description	Delivery Type	Resolution Remarks
OFD/Made to Order	Case 1 - Wrong Order status	The Order has been incorrectly marked as delivered, even though the Order has never been delivered	Hyperlocal & Intercity	Basis the investigation conducted by BFDL & Seller App for identifying the source of the issue. If the issue source lies with BFDL , it will pay the full Order value as per the quote to Seller App. Conversely, if the issue source lies with the Seller App, BFDL will not pay any amount to the Seller App, however, will charge the BFF to the Seller App.
	Case 2a - Quality issue	OFD Order - Buyer raised issue for Quality of Product delivered		BFDL will provide resolution to the Buyer as per the remarks provided by Seller App (Basis the investigation), however, will charge the BFF to the Seller App.
	Case 2b - Quality issue	Made to Order - Buyer raised issue for Quality of Product delivered		BFDL will provide resolution to the Buyer as per the remarks provided by Seller App (Basis the investigation), however, will charge the BFF to the Seller App.

Non - OFD (Returnable /Non Returnable Product)	Case 1	The Order has been incorrectly marked as delivered, even though the Order has never been delivered	Hyperlocal & Intercity	Basis the investigation conducted by BFDL & Seller App for identifying the source of the issue. If the issue source lies with BFDL, it will pay the full Order value as per the quote to Seller App. Conversely, if the issue source lies with the Seller App, BFDL will not pay any amount to the Seller App, however, will charge the BFF to the Seller App.
	Case 2	Buyer raised issue for Quality of Product delivered		BFDL will provide resolution to the Buyer as per the remarks provided by Seller App (Basis the investigation), however, will charge the BFF to the Seller App.

Note:

1. In any event BFDL chooses to provide a resolution to Buyer that is not proposed by the Seller App, the additional costs of such resolution are to be borne by BFDL exclusively however, the normal cost of such resolution shall be borne by the Seller App. Seller App is entitled to receive the amount specified post adjustment as per the resolution proposed by the Seller App. (Applicable for Case 2 under both Cancellation & Refund/Return/Replacement as mentioned above).
2. In an event where a resolution of refund to the Buyer is provided by Seller App, the Seller App may choose to process the refund either with or without pickup of the Product delivered. In cases where a refund is to be issued with pickup, the Seller App may confirm refund post pick up from the Buyer. (Applicable for Case 2 under Refund/Return/Replacement as mentioned above).
3. Notwithstanding, Seller agrees that once the order has been accepted by the Seller or the order is in created state for more than 3 days from the date of order and the order is not shipped by Seller, in such case, BFDL holds the right to mark the order as cancelled and refund the amount to the customer without further seeking any confirmation from the Seller. Incase if the Seller ships the order post the same, the Seller agrees to take all such steps for return of the order and indemnify BFDL in case of any customer claims for such delay in processing of the order.

5. ISSUE RESOLUTION RESPONSE TAT:

1. Seller App shall adhere to the below timelines for respective Issue Sub Category listed in the IGM framework ([Link](#)). If the Seller App needs more information for closure of issue then the time to closure shall be calculated from the time of response by the Buyer App to the need for information request from the Seller App.

Category	Sub Category	ENUMs	Expected time to Resolve/Completed (ETC)
ORDER	Order not received	ORD01	30 mins for OFD, 48 Hours for MTO and Non OFD
	Quality issue	ORD02	1 hour for OFD, 48 Hours for MTO and Non OFD
	Delayed delivery	ORD03	OFD-30 mins Non OFD-4 hours for hyperlocal/SDD Order or 24 hour for National Delivery
ITEM	Missing items	ITM01	15 mins for OFD, 48 Hours for MTO and Non OFD
	Quantity issue	ITM02	30 mins for OFD, 48 Hours for MTO and Non OFD
	Item mismatch	ITM03	30 mins for OFD, 48 Hours for MTO and Non OFD

	Quality issue	ITM04	30 mins for OFD, 48 Hours for MTO and Non OFD
	Expired item	ITM05	15 mins for OFD, 48 Hours for MTO and Non OFD
	Wrong delivery address	FLM01	OFD-30 mins Non OFD-48 hours for hyperlocal/SDD Order or 24 hour for National Delivery
	Delay in delivery	FLM02	OFD-30 mins Non OFD-48 hours for hyperlocal/SDD Order or 24 hour for National Delivery

FULFILLMENT	Delayed delivery	FLM03	OFD-30 mins Non OFD-48 hours for hyperlocal/SDD Order or 24 hour for National Delivery
	Packaging	FLM04	OFD-30 mins Non OFD-48 hours for hyperlocal/SDD Order or 24 hour for National Delivery
	Buyer not found	FLM05	OFD-30 mins Non OFD-48 hours for hyperlocal/SDD Order or 24 hour for National Delivery

	Seller not found	FLM06	OFD-30 mins Non OFD-48 hours for hyperlocal/SDD Order or 24 hour for National Delivery
	Package info mismatch	FLM07	OFD-30 mins Non OFD-48 hours for hyperlocal/SDD Order or 24 hour for National Delivery
	Incorrectly marked as delivered	FLM08	10 mins for OFD, 48 Hours for MTO and Non OFD
AGENT	Agent behavioural issue	AGT01	OFD-30 mins Non OFD-48 hour
	Buyer behavioural issue	AGT02	OFD-30 mins Non OFD-48 hour
PAYMENT	Refund not received	PMT01	OFD-30 mins Non OFD-48 hour

2. In the event that Seller App do not adhere to the aforementioned timelines, BFDL will be entitled to take necessary actions, which may include resolution in favour of the Buyer. BFDL shall be entitled to deduct the settlement amount from the payout to the Seller App for such Order.
3. If a Buyer App wishes to specify certain criteria regarding visibility of Seller Apps related to Buyer issues, they can declare such criteria on the Declaration page under the section 'Why may a merchant not be visible on Buyer App?'

6. TERM AND TERMINATION:

- 6.1 The Agreement shall come into force on the acceptance of the terms by the Seller App in the Confirmation.
- 6.2 The Term of this Agreement shall start from Execution Date of this Agreement and shall continue unless terminated as per the terms of this Agreement. Either Parties may terminate this Agreement if the other Party is in breach of any of its obligations, found in breach of representations or warranties, or any other material terms as contained in this Agreement. However, such termination shall not affect any rights or obligations of the Parties that have accrued prior to the termination of the Agreement.
- 6.3 Upon material breach of this Agreement by either Party which is not cured within thirty (30) days of receipt of notification from the non-breaching Party, the non-breaching Party shall be free to terminate the Agreement forthwith.
- 6.4 Either Party may terminate the Agreement forthwith in writing if
 - i. the other Party is adjudged bankrupt, or makes a general assignment for the benefit of its creditors, or
 - ii. if a receiver is appointed for all or a substantial portion of its assets and is not discharged within sixty (60) days after his appointment; or
 - iii. such Party commences any proceeding for relief from its creditors in any court under any insolvency statutes.

- 6.5 Either Party may terminate the Agreement by giving a 1 (one) months' notice in writing to the other Party for termination without a cause.
- 6.6 Consequences of Expiry/ Termination/ Suspension: Upon Expiry/Termination/Suspension of the Agreement:
- 6.6.1. BFDL shall be entitled to remove the name and de-list the Products displayed on Bajaj Buyer Application and/or advertised on Bajaj Buyer Application.
- 6.6.2. All Orders in relation to the Products of the Seller that have been received prior to the termination of the Agreement and all obligations to return the Product and/or refund the amount paid by the Buyer which may arise in the period after the date of termination hereof, shall be honoured and completed, notwithstanding any termination hereof, in accordance with the terms of this Agreement; and the Seller agrees and undertakes to co-operate with BFDL for the same.
- 6.6.3 The Seller shall forthwith without delay or demur make payment of all outstanding amounts that are due to BFDL or its Affiliates under the Agreement.
- 6.6.4 Seller agrees that termination or expiry of the Agreement shall not affect any accrued rights or liabilities of BFDL, nor will it affect the clauses and provisions of this Agreement which are expressly or by implication intended to continue in force on or after termination.

7. GENERAL OBLIGATIONS:

- 7.1. All payments under this Agreement will be subject to deduction or withholding as required by any Applicable Law and as permitted under the Confirmations.
- 7.2. Collection of Payment from Buyer: As mutually agreed by the Parties in their Confirmation. Further terms regarding payment collection including how the payment will be collected, withholding amount, settlement amount, Settlement Window, settlement type will be as per the Confirmations of the Party.
- 7.3. Each Party shall use its own infrastructure, manpower, personnel and other facilities and bear its own expenses for the performance of the terms hereof.
- 7.4. The Buyer App shall not make any warranties or guarantees concerning the Seller, Seller App or the Seller's goods/services, other than those provided by the Seller or the Seller App in writing to the Buyer App pursuant to this Agreement.
- 7.5. Except for costs incurred as per the Indemnity clause, it is agreed that each Party shall bear the costs of their respective legal costs in connection with the execution of this Agreement.
- 7.6. Buyer App shall have no control over the identity of Buyer and mode of payment being used and therefore does not guarantee accuracy and authenticity of information provided and Payment Mode used.

8. SELLER'S OBLIGATIONS:

- 8.1 The Seller shall ensure that the Products are dispatched on time and are as per the ordered specifications of the Buyer and there is no variation whatsoever. Seller shall also timely update the status of dispatch, delivery of the Order to BFDL.
- 8.2 Seller shall generate, print and issue an invoice for the purchased Product to the Buyers with all the warranty terms and conditions.

- 8.3 During the Term of this Agreement, Seller will be solely responsible for fulfilment of the Products ordered by Buyer through Bajaj Buyer Application. It would be Seller's responsibility to source, pick-up, pack, return and dispatch the Products to the Buyer.
- 8.4 The Seller shall (either itself or through its Suppliers) be responsible for all warranty and after-sales services of the Products, its standard product warranty and maintenance contracts and shall keep BFDL fully indemnified in this regard.
- 8.5 The Seller agrees to replace the defective, damaged or unusable Products supplied to the Buyer at its own cost within mutually agreed turn-around time [TAT] and shall not hold BFDL responsible in any manner whatsoever.
- 8.6 The Seller agrees and undertakes to fully co-operate with BFDL as reasonably required, in connection with any Buyer-service functions undertaken by BFDL.
- 8.7 Notwithstanding anything to the contrary contained herein, it is clarified and agreed that any and all liabilities arising in connection with any defect, fault, delivery of wrong Product, specifications or shortcoming in the Product(s) shall be sole responsibility of the Seller or its Supplier and this provision shall survive the termination of this Agreement.
- 8.8 Seller agrees to seek advance written approval from BFDL, prior to release of any promotion/advertisement material, in so far as the same relates to Services offered through this Agreement.
- 8.9 Seller is not permitted to advertise or use the brand name, trademarks or logo of or use the words, BFDL, "Bajaj", "Bajaj Finserv", 'Bajaj Finserv Lending', 'Bajaj Finance Limited', Bajaj Finserv Direct Limited and any variations or misspellings, be it separately or in combination with other keywords or trade names without prior written consent of BFDL.
- 8.10 Seller shall comply and ensure that its logistic partner complies with the following Code of Conduct at all times.
- 8.11 Seller shall ensure that the personnel provide service with reasonable skill and care to ensure delightful Buyer experience. The Personnel appointed by the Seller and or its logistic Partner to deliver the shipment under no circumstances shall:
- i. Contact the Buyers beyond reasonable time in the day (0930hrs to 2000hrs)
 - ii. Contact Buyer beyond the provision of delivery services;
 - iii. Misbehave with Buyer while delivering shipment;
 - iv. Enter the prospect's residence/office against his/her wishes;
 - v. Visit in large numbers
 - vi. Misuse or share any information provided by the Seller;
 - vii. Harass the Buyer through any online or offline medium;
 - viii. Be involved in loss or theft of goods and cash;
 - ix. Provide wrong update on shipment and pick up status;
 - x. Be rude with the Buyers;
 - xi. Violate the delivery terms or,
 - xii. Take any unwarranted allowances such as tips from the Buyer
- 8.12 BFDL reserves the right to delist, remove or suspend the Seller from Bajaj Buyer Application if found violating the Code of Conduct. BFDL has no tolerance for bribery or corruption in any aspect of its business. Parties shall not participate in, facilitate or permit any form of corruption, bribery, kickback, extortion, embezzlement or money laundering with person in relation to the obligations of the Party in this agreement.
- 8.13 Seller will keep accurate and complete books, records and accounts related to Orders on Bajaj Buyer Application and this Agreement, and will allow BFDL, or its duly authorized representative, the right, to conduct, during regular business hours, full and independent audits and investigations of all information, books, records and accounts reasonably

required by BFDL upon not less than five (5) days written notice, during the Term of this Agreement and for two (2) years after its termination or expiration.

- 8.14 Seller will provide to BFDL, Affiliates, internal and external auditors access to Seller's records and transactions relating to obligations and terms of this Agreement for any verification per the regulatory requirements. For the provision of such records, Seller to adhere to a timeline as informed via email or any such notification by BFDL.
- 8.15 The Seller will be solely responsible to create and provide updated catalogue for the Product; including pricing, inventory (including discounts and promotions and information about product discontinuation) from time to time for publishing on Bajaj Buyer Application and ensure that it is accurate and complete.
- 8.16 Seller shall provide all the required information of the Products, necessary for enabling Buyers to make informed decisions at the pre-purchase stage or as may be requested by BFDL for listing of Products on Bajaj Buyer Application. BFDL does not warrant that all the Products shall be available for listing on Bajaj Buyer Application. Notwithstanding the foregoing, BFDL has the right to refuse to display, or withdraw from Bajaj Buyer Application, any Product of the Seller from BFDL Platform with an intimation to the Seller within 24 business hours prior to delisting the Seller/ Product, on reasonable effort basis.
- 8.17 The Seller shall be responsible for the following information published on the Bajaj Buyer Application as per applicable laws:
 - 8.17.1 description of each of Products (including but not limited to the technical description, brand name, the price and any applicable warranty terms, country of origin, manufacturer/importer details as applicable) on Bajaj Buyer Application.
 - 8.17.2 Terms and conditions for Returns, refund and cancellation policy for the Products, including information related to delivery turnaround time, shipping/return costs etc.
 - 8.17.3 Information in relation to status of the order placed by Buyers.
 - 8.17.4 Buyer Helpdesk number contact details of the Grievance officer for inquiries about description, status of orders, Buyer complaints and grievances and any other matter related to the Product.
 - 8.17.5 Principal geographic address of its headquarters and all branches, name and details of its website, its email address and any other information necessary for communication with the Seller for effective dispute resolution.
 - 8.17.6 Any other information or disclosure required to be made for sale of Products, under applicable laws.
 - 8.17.7 Comply with all terms and conditions as per E-Commerce Rules 2020 and all other applicable laws.
 - 8.17.8 Shall not practice price manipulation and/or discrimination between Buyers of same class or make any arbitrary classification of Buyers thereby affecting their right to avail products and services as availed via Bajaj Buyer App.
- 8.18 The Seller hereby confirms that no information provided of the Product is unfair, illegal or misrepresenting about the quality, authenticity, Brand name, Model, Usage, manufacturing date.

- 8.19 Sale of Product through the Platform will be a bipartite transaction between Seller and the Buyer and BFDL shall act merely as a facilitator of such Sale via its platform. The title, ownership and all risk relating to the Products shall be deemed to pass directly from the Seller (or the Manufacturer) to the Buyer upon delivery of the Products to the Buyer and payment of the consideration for the Products to the Seller through Bajaj Buyer Application via Payment Facility.
- 8.20 Seller will have sole responsibility for the quality, fitness for purpose, merchantability and suitability of Product and BFDL shall in no manner be liable for any defects in the Products, under any circumstances.
- 8.21 The Seller hereby agrees to pay commission at 4 % plus GST for any Sale completed with the Buyer encompassing all products, except mobiles phones, where commission shall be at 2 % plus GST, unless otherwise regulated by ONDC.

9. SELLER'S UNDERTAKING:

- 9.1 The Seller has all rights (including all Intellectual Property rights), approvals and consents from any third parties (including Suppliers) required to enter and perform its obligations and comply with the terms & conditions of this Agreement and to advertise, supply and sell the Products on Bajaj Buyer Application as contemplated hereunder.
- 9.2 The Seller has procured all necessary registrations/permits/authorizations as required under applicable laws for sale of Products through Bajaj Buyer Application and shall provide satisfactory proof about the registrations/permits/authorizations as and when demanded by BFDL.
- 9.3 The Seller shall be solely responsible for payment of applicable taxes with respect to the sale of the Products to the relevant government authorities in a timely manner and BFDL shall neither be responsible nor be held liable for any non-compliance/contravention of applicable tax laws by the Seller. The Seller hereby agrees to keep BFDL harmless and indemnified in this regard. The indemnity obligations of the Seller contained herein shall survive the termination of the Agreement.
- 9.4 Seller represents that the Products advertised for sale by the Seller on Bajaj Buyer Application are either manufactured by the Seller or are sourced/ purchased by the Seller from third party owner/manufacturer/suppliers ("Suppliers").
- 9.5 The Seller has a valid, clear and marketable title to all the Products being displayed, advertised and sold through Bajaj Buyer Application under the terms of this Agreement and that the listing price of Product is accurate, current, and complete and does not contain any hidden charges or is not misleading or otherwise deceptive.
- 9.6 All the Products are genuine, merchantable, marketable and of the same quality and nature as described by the Seller to BFDL for display on Bajaj Buyer Application and that the Products are new and are not counterfeit products.
- 9.7 The Seller has valid, clear and full rights / entitlement to use the trademarks, designs, copyrights of or related to the Products for display and advertise of sale on Bajaj Buyer Application.

9.8 Further, Seller agrees and undertakes that none of the Products or related materials: (a) is grossly harmful, harassing, blasphemous, defamatory, obscene, pornographic, paedophilic, libellous, invasive of another's privacy, hateful, or racially, ethnically objectionable, disparaging, relating or encouraging money laundering or gambling, or otherwise unlawful in any manner whatever; (b) harm minors in any way; (c) infringes any patent, trademark, copyright or other proprietary rights; (d) violates any law for the time being in force; (e) deceives or misleads the Buyer about the origin of such messages; (f) communicates any information which is grossly offensive or menacing in nature; (g) impersonate another person; (h) contains software viruses or any other computer code, files or programs designed to interrupt, destroy, limit or impede the functionality of Bajaj Buyer Application or other digital assets of BFDL. (i) threatens the unity, integrity, defence, security or sovereignty of India, friendly relations with foreign states, or public order or causes incitement to the commission of any cognisable offence or prevents investigation of any offence or is insulting any other nation. BFDL shall have all the rights to takedown such Products, suspend access to Bajaj Buyer Application to the Seller in event of breach of the abovementioned covenant.

- 9.9 Seller has and shall maintain all the title and ownership, license, or right to use, as applicable, in all the Intellectual Property Rights associated with it to use, distribute, or otherwise exploit in all

manners permitted by this Agreement and/or the ONDC Network Policy.

- 9.10 Seller is responsible for all the listing information that is displayed and published on the Bajaj Buyer Application against the respective Product listed therein. BFDL, is not responsible or liable for the said information and hence the Seller hereby agrees to keep BFDL harmless and indemnified in this regard. The indemnity obligations of the Seller contained herein shall survive the termination of the Agreement.
- 9.11 Seller hereby agrees that in the event BFDL receives a service request related to a product from the Buyer, BFDL shall withhold payment for that specific product to the Seller, until the service request is resolved and the Buyer is satisfied with the solution and/or incase if the payment for such specific product is processed by BFDL in favor of the Seller, the Seller agrees to adjust the same against next payment which accrues in favor of the Seller from BFDL.

10. REPRESENTATIONS AND WARRANTIES:

Each Party represents and warrants to the other Party that:

- 10.1. It is duly organised and validly existing under the laws of India and has the full requisite right, power, and authority (corporate or otherwise) to enter into this Agreement and to deliver or perform the acts required of it under this Agreement.
- 10.2. They have read, understood and agree to comply with the terms specified in this Agreement along with the Confirmation exchanged between the Parties, and the same shall form a legal, valid, and binding contract between the Parties with respect to this transaction.
- 10.3. It has and shall maintain all necessary statutory and regulatory permissions, approvals, licenses, consents or permits, from any third parties including any regulatory or government body as required by applicable law or regulations, that is necessary for the running and operation of its establishment for the conduct of its operations.
- 10.4. It has and shall maintain all the title and ownership, license, or right to use, as applicable, in all the IPR associated with it to use, distribute, or otherwise exploit in all manners permitted by this Agreement and/or the ONDC Network Policy.
- 10.5. All information submitted by the Parties is truthful, lawful and accurate, as on the date of this Agreement.
- 10.6. It has complied with or will ensure and will continue to ensure compliance with all conditions provided under the Applicable Laws to enable it to lawfully enter into and exercise its rights and perform its obligations under this Agreement.
- 10.7. The fulfilment or compliance with the terms and provisions hereof, will not conflict with, or result in a breach of the provisions of any agreement, instrument, order, judgement, decree, statute, law, rule, or regulation to which they are subject to or the IPRs of any third party, or require any consent, approval or other action by any court, tribunal, administrative or Competent Authority, or result in a violation of any law, regulation, administrative order or judicial order applicable to it or its business or assets.

- 10.8. It shall not make any statement to defame or disparage the other Party or adversely affect the other Party's reputation, except when such statement is truthful and is reasonably necessary for the Party to enforce or defend its rights under this Agreement, or is required by a court of law, mediator, arbitrator or regulatory or legislative body with jurisdiction to order the Party to make such statement.
- 10.9. It shall comply with the ONDC Network Participant Agreement and ONDC Network Policy or any other policies as prescribed by ONDC and
- 10.10. All services will be performed in a professional manner consistent with the industry standards reasonably applicable to such services.
- 11. It shall comply with the Digital Personal Data Protection Act 2023, and the DPDP Rules 2025, as amended from time to time, including, without limitation, the obligations as outlined under Annexure I, while performing its obligations under this Agreement. INDEPENDENT PARTIES:**
 - 11.1. The Parties agree that they are independent parties and are not, or shall not claim to be, an agent / representative of the other Party. It is understood between the Parties that neither Party is the legal representative of the other Party.
 - 11.2. Nothing contained herein shall be deemed to create any association, partnership, joint venture or relationship of principal and agent or master and servant or, employer and employee between the Parties.
 - 11.3. Each Party including their staff/employees, agents, personnel have no authority/ right to bind the other Party in any manner and each Party shall not do any act, deed or thing which has the effect of binding the other Party or creating any obligation and / or liability upon the other Party otherwise than as specifically provided herein.
 - 11.4. Each Party shall be solely liable for all acts of its staff / employee /End User that may cause any actual and / or potential damage, loss or injury to the other Party.
- 12. INDEMNITY AND LIMITATION OF LIABILITY:**
 - 12.1. Either Party ("Indemnifying Party") hereby agrees to indemnify, defend and hold the other Party, its director, officers, employees, service providers, and agents ("Indemnified Party") harmless from and against claims, demands, actions, liabilities, costs, interest, injuries, losses, judgments, fines penalties, proceedings, action or demand, damages, and expenses of any nature whatsoever (including all legal and other costs, charges and expenses) incurred or suffered by the Indemnified Party, directly arising out of third party claim in connection with any or all of the following:
 - 12.1.1. any wrongful or negligent act or omission of the Indemnifying Party, including but not limited to, sharing incorrect or incomplete information with the Indemnified Party in connection with a transaction on the ONDC Network;
 - 12.1.2. any breach by Indemnifying Party of its obligations, undertakings, warranties or covenants under this Agreement or the ONDC Network Policy or the ONDC Network Participant Agreement;
 - 12.1.3. any breach of Applicable Law by the Indemnifying Party;
 - 12.1.4. Breach of data or corruption of data or information whether due to negligent performance or non-performance of the Indemnifying Party or its employees, agents, representatives etc. or for any reason whatsoever attributable to Indemnifying Party; and
 - 12.1.5. any third-party action or claim made against the Indemnified Party, by reason of any actions undertaken/omission to take any action by the Indemnifying Party under this Agreement.
 - 12.1.6. Disclosure or access of the Confidential Information inconsistent with the terms of this Agreement

- 12.2. Seller App/Seller acknowledge that Buyer App does not control and is not liable to or responsible for the quality, safety, suitability of Products, lawfulness or availability or delivery of the Products or services offered for sale. The Buyer App shall not make any warranties or guarantees concerning the Seller, Seller App or the Seller's Products, other than those provided by the Seller or the Seller App to the Buyer App pursuant to this Agreement. The Seller/ Seller App shall indemnify, defend and hold harmless the Buyer App or the Buyer from and against all claims, actions and proceedings arising out of or resulting from the violation of this clause.
- 12.3. Further the Seller/Seller App shall be liable to indemnify, defend and hold harmless BFDL and the Buyer against any claims, actions and proceedings arising out of acts/omissions/errors of any third party including but not limited to delivery partners, logistics service providers, etc. engaged by the Seller for fulfilment of the Order under the terms of this Agreement.
- 12.4. Notwithstanding the above, each Party shall be liable for any loss or damage caused to the Order that are attributable to any acts of commission or omission of such Party or its employees, agents, assigns, third-parties engaged by it or other representatives to the extent of the value of the Products involved or as mutually decided in its Confirmation. Either Party shall be responsible for any technical errors on Buyer App or Seller App as shall be applicable for such error, leading to any claims from the Buyer as regards to such Order.
- 12.5. Each Party shall also independently be liable for the services offered by it to the End Users, Buyers and other Network Participants, as per the relevant terms and conditions of each Party.
- 12.6. Neither Party will be liable to the other Party for any indirect or consequential loss or damage including, without limitation, any indirect loss of business or profits in each case whether arising from negligence, breach of contract or otherwise. The Parties agree that the liability of either of the Party shall be limited to the specific Order or such actual claim made by the Buyer against the Buyer App. Such liability cap shall however exclude any liability arising from wilful default, fraud, Intellectual Property, Confidentiality, Data Protection and applicable laws.

13. PENALTY:

- 13.1 In case BFDL observes an increase in Buyer complaint trend or non-adherence to any of the terms & conditions of this Agreement by the Seller resulting into the occurrence of the following instances and cancellations that reaches above 5% in a month, then BFDL reserves a right to impose a penalty of ₹ 250/- (Rupees Two Hundred and fifty only) or 4% of the value of the Product whichever is higher per instance/per order which shall be payable to BFDL or shall be deducted from future settlements towards sale of Specified Products:
- i) Inability to meet the orders, whether due to inadequacy of stocks or otherwise within agreed timelines; or
 - ii) Returns due to bad/defective Specified Product; or
 - iii) Returns due to delivery of Specified Products not in accord with Buyer's order; or
 - iv) Deficiency of services by Seller; or
 - v) Negligence and rashness by the Seller; while servicing a Buyer; or
 - vi) Harm to Buyer due to breach of duty and standard of care by the Seller.
- 13.2 In furtherance if such instances non-adherence or instances constitute more than 30 % of the total orders for a Seller basis a six month's Seller's performance; BFDL has the right to suspend or delist the Seller which shall be in addition to penalty prescribed above.

14. DATA PROTECTION:

- 14.1. The Parties may share Personal Data of the Buyer for fulfilling Order placed by the Buyers (Specified Purpose).
- 14.2. Each Party (and shall procure that its employees shall) comply with all Data Protection Legislation and such compliance shall include, but not be limited to, compliance to any rules, orders, or notification (where applicable) under the Data Protection Legislation.
- 14.3. For the purpose of this Agreement, "Data Protection Legislation" means all legislation and regulations relating to the protection of Personal Data and processing, storage, usage, collection and/or application of Personal Data or privacy of an individual including (without limitation):
 - 14.3.1. The Information Technology Act, 2000 (as amended from time to time), including the rules framed thereunder or any other legislation applicable including the Digital Personal Data Protection Act, 2023;
 - 14.3.2. All other guidelines or codes of conduct relating to the protection of Personal Data and processing, storage, usage, collection and/or application of Personal Data or privacy of an individual issued by any Competent Authority;
 - 14.3.3. Any other applicable Law solely relating to the protection of Personal Data and processing, storage, usage, collection and/or application of Personal Data or privacy of an individual.
 - 14.3.4. "Personal Data" shall have the same meaning as ascribed to it under the Information Technology Act, 2000 (as amended from time to time) or the Digital Personal Data Protection Act, 2023, whichever is in effect.
- 14.4. Each Party agrees to only undertake processing of Personal Data in accordance with applicable law. Parties grant each other the right to take such steps in the processing of Personal Data on behalf of each other as are necessary for their performance obligations under this Agreement.
- 14.5. For the purposes of this Agreement, the Parties shall not process or transfer any Personal Data to any third-party unless it can be necessary for the performance under this Agreement.
- 14.6. Parties shall at all times have appropriate technical and organisational measures in place:-
 - 14.6.1. to prevent unauthorised or unlawful processing of any Personal Data;
 - 14.6.2. to protect any Personal Data against accidental loss, destruction or damage;
 - 14.6.3. to include taking reasonable steps to ensure the reliability of its employees/contractor having access to the Personal Data; and
 - 14.6.4. having regard to the state of technological development and the cost of implementing those measures so as to ensure a level of security appropriate to:- (i) the harm that may result from breach of those measures; and (ii) the nature of the Personal Data to be protected.
 - 14.6.5. If either Party receive a request from any person for access to Personal Data or any other request relating to obligations under the Data Protection Legislation, the other Party shall provide full co-operation and assistance in relation to any such complaint or request only to the extent necessary

under Data Protection Legislation

- 14.7. Each Party agrees to not process Personal Data shared by the other Party for purposes other than the Specified Purpose. Processing of Personal Data for purposes other than the Specified Purpose can only be done after obtaining an explicit consent from the End User.

15. CONFIDENTIAL INFORMATION:

- 15.1. Each Party acknowledges and agrees that all tangible and intangible information obtained, developed or disclosed, including all documents, data, papers, statements, any business / customer information, trade secrets and processes of the other Party relating to such Party's business practices, in connection with this Agreement or otherwise, is deemed by such disclosing Party and shall be considered at all times to be confidential and proprietary information of such Disclosing Party (Confidential Information);
- 15.2. The Receiving Party shall ensure that Confidential Information is not used or permitted to be used in any manner incompatible or inconsistent with that authorized by the Disclosing Party. The Receiving Party confirms that Confidential Information will be safeguarded by the Receiving Party and the Receiving Party will take all necessary action to protect Confidential Information against misuse, loss, destruction, alterations or deletions thereof.
- 15.3. Receiving Party shall restrict disclosure of the Confidential Information solely to those persons with a need to know and not disclose it to any other person and advise those persons and ensure of their obligations with respect to the Confidential Information.
- 15.4. The provisions of this Clause shall be applicable and binding on the Parties, except to the extent that such Confidential Information (i) is already in the public domain; (ii) is required or requested to be disclosed under any applicable law or by any judicial/regulatory body; (iii) was previously known or already in the lawful possession of the Receiving Party, prior to disclosure by the Disclosing Party or the Customers; or (iv) has been independently developed / obtained by the Receiving Party without reference to any Confidential Information furnished by the Disclosing Party or the Customers.
- 15.5. Notwithstanding anything herein contained, Clause 12 shall survive a term of 3 (three) years from the termination of this Agreement or for such period as required under Applicable Law, whichever is longer.
- 15.6. If the Receiving Party is directed by court order or other legal or regulatory request or similar process to disclose information recorded on any documents or any of the Disclosing Party's Confidential Information, the Receiving Party shall within reasonable time possible notify the Disclosing Party in writing, in sufficient detail upon receipt of such court order, legal or regulatory request or similar process, in order to permit the Disclosing Party to make an application for an appropriate protection order (which the Disclosing Party may pursue at its own expenses).

16. INTELLECTUAL PROPERTY:

All intellectual property rights of the Parties including without limitation trademarks, trade name, logo, copyrights, advertising copy, material, graphics, and etc., shall remain the sole property of the respective Parties. It is understood by the Parties that the usage of the other Party's name and logo shall be solely used for the purpose of this Agreement and will be subject to prior written approval of the respective Party on the terms to be stipulated by such Party. It is hereby clarified that any usage of name and logo and/or any other intellectual property rights of a Party shall not create any right, title or interest in respect of such name, logo or intellectual property in favour of the Party using the same.

17. DISCLAIMERS:

- 17.1 The Bajaj Buyer Application is a platform solely for use in India.
- 17.2 BFDL shall be acting as mere facilitator of platform for the Seller to display and advertise for sale of Products where the Products will be displayed on the Bajaj Buyer Application; and at no time shall any risk, title, ownership of the Products will be transferred to BFDL for any reason whatsoever nor does BFDL have means to verify the veracity of Seller's Products and services which are offered under this Agreement. The title, ownership and all risk relating to the Products shall be deemed to pass directly from the Seller to the Buyer upon delivery of the Products to the Buyer. Further, any disputes arising out of sale of Product between Seller and Buyer; BFDL shall be released from any claims, demands, damages of any kind whether actual or consequential resulting from such disputes.
- 17.3 BFDL does not at any time during the Order process take physical possession of the Product offered by Seller, therefore BFDL shall not be liable for any loss of money, goodwill, or reputation, or any special, indirect, or consequential damages arising out of Seller's use of the services and Platform provided by BFDL.
- 17.4 Also, the Seller hereby agrees and understands and shall not hold BFDL responsible or liable for claims by Buyer against unauthorized disclosure of their personal data and sensitive personal data made available to Seller for performance of Services under this Agreement.
- 17.5 To the maximum extent permitted by applicable law, BFDL does not warrant that the digital platform offered by BFDL will be fit for purpose or be available, timely, secure, uninterrupted or error free or fully secure. BFDL will not be liable for any service interruptions, including, but not limited to system failures or other interruptions that may affect the receipt, processing, acceptance, completion or settlement of any transactions.
- 17.6 Neither BFDL nor its affiliates, officers, directors, licensors, suppliers, employees or agents make any representations or warranties, express or implied, to Seller with respect to the sale of Seller's products through Bajaj Buyer Application pursuant to this agreement, and all such services provided by BFDL are provided on an "as-is" and "as available" basis.

18. PERFORMANCE EXCEPTIONS:

- 18.1. Force Majeure: If any Party to this Agreement is unable to meet its obligations under this Agreement as a result of flood, earthquake, storm, other acts of God including fire, derailment, accident, strike, lockout, explosion, war, insurrection, riot, embargo, terrorist activity, epidemic, pandemic, act of government or governmental agency or other similar cause beyond the reasonable control ("Force Majeure") of the parties, such party will be excused from performing its obligations for the duration of the Force Majeure.
- 18.2. If either Party is unable to meet its obligations under this Agreement as a result of a disruption in the ONDC Network, such party will be excused from performing its obligations for the duration of the disruption
- 18.3. The Party affected by such a Force Majeure event shall promptly notify the other Party in writing specifying the nature of the Force Majeure and of the anticipated delay in the performance of this Agreement, and as of the date of that notification, the Party affected may suspend the performance of this Agreement until the cause of the delay ends.

19. GOVERNING LAW:

Each Party agrees that any dispute or claim relating to, the enforceability of, or the termination of this agreement is to be governed by and construed in accordance with the

laws of India and the Parties submit to the non-exclusive jurisdiction of courts as provided in the Confirmation. All disputes arising out of or in relation to these Terms and Conditions and/or the Agreement shall be subject to the exclusive jurisdiction of courts at Pune, India.

20. ARBITRATION:

The Parties hereto shall initially attempt to resolve all claims, disputes or controversies arising under, out of or in connection with this Agreement by conducting good faith negotiations amongst themselves. If the Parties are unable to resolve the matter following good faith negotiations, within a period of 30 (thirty) days) the Parties shall settle the dispute through arbitration to be conducted in accordance with the Arbitration and Conciliation Act, 1996 (with amendments thereto). The venue of arbitration shall be in Pune, Maharashtra.

21. MISCELLANEOUS:

- 21.1. **Entire Agreement.** This Agreement constitutes the entire agreement and understanding of the Parties with respect to its subject matter. Each of the parties acknowledges that in entering into this Agreement it has not relied on any oral or written representation, warranty or other assurance (except as provided for or referred to in this Agreement) and waives all rights and remedies which might otherwise be available to it in respect thereof, except those specifically provided under the ONDC Network Policies and applicable law, except that nothing in this Agreement will limit or exclude any liability of a Party for fraud.
- 21.2. **Amendments:** An amendment, modification or waiver in respect of this Agreement shall be considered effective only to the extent that such amendments are mutually agreed to between the Parties, for the particulars agreed upon in clauses 2, 3, 4 and 5 of this Agreement.
- 21.3. **Survival of Obligations:** It is agreed that such provisions and obligations which, by their very nature, survive the termination of this Agreement, shall continue to be binding on the Parties.
- 21.4. **No Waiver of Rights:** A failure or delay in exercising any right, power or privilege in respect of this Agreement will not be presumed to operate as a waiver, and a single or partial exercise of any right, power or privilege will not be presumed to preclude any subsequent or further exercise, of that right, power or privilege or the exercise of any other right, power or privilege.
- 21.5. **Headings:** The headings used in this Agreement are for convenience of reference only and are not to affect the construction of or to be taken into consideration in interpreting this Agreement.

Annexure I

Data Fiduciary Annexure ("DFA")

1. Definitions and Interpretation

In this DFA, unless there is anything repugnant to the subject or context thereof, the expressions listed below shall have the following meanings viz.:

- a) **Applicable Data Protection Law:** The DPDPA, the Information Technology Act, 2000, and all rules, directions, regulations, notifications, guidelines and binding orders of any competent authority issued thereunder, in each case as amended or re-enacted from time to time.
- b) **Authority:** Any governmental, regulatory, judicial, quasi-judicial, administrative or law enforcement authority or body, including the Data Protection Board of India, and any authority that issues guidelines, notifications or directions relating to Processing of Personal Data.
- c) **Good Industry Practices:** means the exercise of that degree of skill, diligence, prudence, and foresight which would reasonably and ordinarily be expected from any entity compliant with Applicable Law.
- d) **Principal Agreement:** means this Business Partnership Agreement, including all schedules, annexures, statements of work and amendments, addendums thereto
- e) **Sub-Processor:** means any third-party data processor engaged by a Party

Capitalised terms used in this DFA shall have the meanings ascribed to them under Clause 1 (*Definitions and Interpretation*). Any capitalised terms used but not defined in this DFA (including "Data Fiduciary", "Data Principal", "Data Processor", "Personal Data", "Personal Data Breach", "Processing", etc.), shall bear the same meaning as ascribed to them under the Digital Personal Data Protection Act, 2023 read with the Digital Personal Data Protection Rules, 2025 (together, "**DPDPA**"), as the case may be.

This DFA forms part of and is supplemental to the Principal Agreement. In the event of any conflict between this DFA and the Principal Agreement, this DFA shall prevail only with respect to matters relating to data protection and privacy obligations, and the remaining provisions of the Principal Agreement shall continue to apply.

2. SCOPE AND NATURE OF PROCESSING

2.1 Compliance with Applicable Law

- 2.1.1 The Parties acknowledge that, in order to enable the purpose and scope as stated in the Principal Agreement, it is necessary for both Parties to process Personal Data as a Data Fiduciary. Each Party shall act as a separate and independent Data Fiduciaries in relation to Data and the mode and methodology of Processing under and/or in connection with the Principal Agreement. Each Party shall comply with all Applicable Law in respect of its Processing of Data and shall ensure that it has a lawful basis for all such Processing, where applicable.
- 2.1.2 Prior to sharing any Data, the Parties shall seek the Data Principal's consent as per Applicable Laws with respect to the sharing of Personal Data with the other Party where all rights and obligations shall accordingly be restricted to such Party, acting as Data Fiduciary and such Party acting as Data Fiduciary shall be responsible for ensuring that it provides clear and transparent information to Data Principals, as required under Applicable Law, in relation to the relevant Processing.

2.2 Appointment of Data Processors

- 2.2.1 If either Party engages a third-party Processor to process Personal Data, both Parties shall ensure that an agreement is executed with the Processor that shall ensure: (i) the Processor only processes the Personal Data for the purpose of delivering the Services; (ii) the Processor implements appropriate technical and organisational security measures to protect the Personal Data against a breach; and (iii) compliance with the requirements of Applicable Law.

- 2.2.2 The Parties shall remain responsible to the other Party for any breach of this DFA for all acts, errors or omissions of either party's Processor and shall therefore indemnify the other Party as per terms of the Principal Agreement and this DFA.

2.3 Restrictions on Transfer

The Parties acknowledge that each Party shall provide the other Party with reasonable prior consent in case of any transfer of Data to any location beyond the Republic of India and offer all such reasonable cooperation, assistance and information to the other to assist that other party with its compliance with Applicable Law upon such transfer Data being agreed between the Parties.

2.4 Retention of Data

The Parties acknowledge that, as a general rule, Personal Data may not be kept indefinitely or longer than necessary for the intended Processing. However, in the event either Party is required to retain Personal Data to ensure compliance with any laws at the time being in force, read with any rules, regulations, master circulars, circulars or guidelines applicable thereunder, such party shall ensure that such retained Personal Data is (i) kept confidential and protected against unauthorised access, disclosure or use and (ii) only Processed as necessary as per the requirements under such laws at the time being in force.

2.5 Information Security

In accordance with Good Industry Practice and Applicable Law, each Party shall implement appropriate technical and organisational security measures (including maintaining any security controls) to ensure a level of security for Data in such Party's possession or control that is appropriate to the risk presented by a breach.

2.6 Notifications and Incident Reporting

The Parties shall promptly disclose to the other, within 4 (four) hours any Incident resulting in a breach or apprehension of a breach, including but not limited to any unusual cyber-security incidents (whether they were successful or were attempts which did not fructify), bribery incidents, fraud incidents, suspicious transactions including fraudulent / suspicious currency transactions immediately upon occurrence, and also suggest, undertake and assist in implementing remedial/ corrective steps/ suitable servicing of equipment for mitigation of any damage to the other party and the Data Principal.

2.7 Cooperation and Assistance

- 2.7.1 Both Parties shall keep or cause to be kept such information as is reasonably necessary to demonstrate compliance with its obligations under this DFA and shall, upon reasonable notice during the term of the Agreement, make available to the other Party, information necessary to demonstrate compliance with its obligations under this DFA where such information is not subject to confidentiality restrictions owed to third parties.
- 2.7.2 Without limiting the foregoing, the Parties shall make available to the other, on request: (i) InfoSec ISO or Other Certifications; (ii) any relevant VAPT etc.; and (iii) a summary of the results of the Parties latest internal data security audit for systems that are used to Process Data.
- 2.7.3 Any non-public documentation and information disclosed in accordance with this paragraph shall be deemed proprietary and confidential information of the disclosing entity. The Parties shall not disclose such documentation or information of the other party to any third party or use it for any purpose other than evaluating the disclosing party's compliance with this DFA.

2.8 Indemnity

- 2.8.1 Neither Party shall be liable to the other for any breach, except in cases where such breach is caused by the willful negligence of the Party ("Affected Party") and has resulted in the other Party's systems being compromised ("Party under risk") in case of which, the Party under risk shall be entitled to be indemnified and held harmless by the Affected Party against any actual losses, liabilities, claims, actions, costs and expenses, and penalties arising out of any claim, suit and/or proceeding brought against the Party under risk, by a Data Principal, to the extent of the amount as may be awarded to the Data Principal and/or to the extent of the penalty that is imposed upon the Party under risk by the Authorities.

